



CHAPTER cxxix.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dundee Corporation. A.D. 1921.
[10th November 1921.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Dundee Corporation Order Confirmation Act 1921. Short title.

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SCHEDULE.

DUNDEE CORPORATION.

*Provisional Order for widening Broughty Ferry Road
and the construction of a sea wall or bulwark and a
new road or street and for other purposes.*

WHEREAS the lord provost magistrates and councillors of the city and royal burgh of Dundee (hereinafter called "the Corporation" and "the City" respectively) are vested with the municipal and police administration thereof and are the local authority within the City under the Public Health (Scotland) Act 1897 and are also the local authority and road authority within the City under the Tramways Act 1870:

And whereas by the Dundee Boundaries Act 1913 (hereinafter called "the Boundaries Act of 1913") the burgh of Broughty Ferry and certain portions of the county of Forfar were incorporated with and added to the City and it was by the said Act provided that the Corporation should within ten years apply for and endeavour to obtain powers to enable them to construct and maintain a new road along the foreshore as therein set forth:

And whereas by the Dundee Corporation (Improvements and Tramways) Act 1913 (hereinafter called the "Improvements and Tramways Act of 1913") the Corporation were authorised to make and maintain certain street works therein described and to take certain lands houses and property for and in connection with the same and in respect thereof to borrow the sum of two hundred and ten thousand pounds:

And whereas by the Dundee Corporation Order 1915 (hereinafter called "the Order of 1915") the Corporation were authorised to abandon and relinquish part of the street works authorised by the Improvements and Tramways Act of 1913 and to construct a substituted work:

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And whereas of the said sum of two hundred and ten thousand pounds which the Corporation were authorised by the Improvements and Tramways Act of 1913 to borrow the sum of eighty-seven thousand five hundred pounds part thereof was applicable to the works authorised by the Order of 1915 to be abandoned and relinquished : A.D. 1921.

And whereas in respect of the additional property required for the purposes of the Order of 1915 and the increased cost the amount authorised to be borrowed or raised in respect of the purchase of lands and properties and the construction of the street works by the Improvements and Tramways Act of 1913 was by the said Order of 1915 reduced to the extent only of the sum of sixty thousand pounds :

And whereas by the Order of 1915 the Corporation were authorised to borrow in respect of the purchase of lands and property and the construction of the substituted street work authorised by that Order the sum of one hundred and seventy-three thousand pounds and in respect of the municipal hall council chambers offices and buildings connected therewith the public market and conveniences connected therewith and the shops offices warehouses and other buildings authorised by that Order (hereinafter referred to as "the municipal hall and other buildings") the sum of ninety-seven thousand pounds :

And whereas owing to circumstances arising out of the war the money which the Corporation are authorised to borrow is insufficient for the acquisition of the lands houses and property necessary for and the construction of the street works authorised by the Improvements and Tramways Act of 1913 and the Order of 1915 and the municipal hall and other buildings and it is expedient that the Corporation should be authorised to borrow a further sum of three hundred and sixty-two thousand pounds in respect thereof :

And whereas the Corporation are vested as part of the common good of the City with the public parks known as Lochee Park and Fairmuir and certain funds for the upkeep of the former :

And whereas the annual income arising from the said funds has been insufficient to meet the expenses of keeping up the said Lochee Park and it is expedient and would be of local and public advantage that the said parks

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A.D. 1921. — should be transferred to the Corporation in their capacity as police commissioners and that the deficiency in the income of the said fund for the purposes of keeping up the said Lochee Park and other necessary expenses connected therewith and the upkeep of Fairmuir should be provided for as in this Order is provided :

And whereas it is expedient and would be of local and public advantage that the Corporation should be authorised to make and maintain the widening alteration and improvement sea wall or bulwark and the new road or street hereinafter in this Order described and to acquire lands therefor :

And whereas estimates have been prepared by the Corporation for and in relation to the purposes hereinafter mentioned in respect of which they are by this Order authorised to borrow money and such estimates are as follows :—

	£	s.	d.
For the purchase of lands properties and servitudes - - - -	8,000	0	0
For the construction of the widening alteration and improvement sea wall or bulwark and new road or street - - - - -	198,000	0	0
	206,000	0	0

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas it is expedient that the Corporation should be authorised to borrow and raise money for the purposes of this Order and to levy rates and assessments as in this Order provided :

And whereas it is expedient that the further powers and provisions hereinafter in this Order contained should be conferred on the Corporation and made as by this Order provided :

And whereas plans and sections showing the lines situations and levels of the widening alteration and improvement sea wall or bulwark and the new road or street authorised by this Order and also a book of reference to such plans containing the names of the owners and

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lessees or reputed owners and lessees and of the occupiers of the lands houses and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerk of the county of Forfar at his offices at Dundee and Forfar respectively and are hereinafter referred to as the deposited plans sections and book of reference :

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And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Dundee Corporation Order 1921.

Short title
and citation
of Acts.

The Dundee Corporation Acts 1871 to 1920 and this Order may be cited together as the Dundee Corporation Acts 1871 to 1921.

2. The Lands Clauses Acts so far as the same are applicable for the purposes of and are not varied by or inconsistent with this Order are incorporated with and form part of this Order This Order shall be deemed to be a special Act within the meaning of those Acts.

Incorporation
of Acts.

3. In this Order terms words and expressions to which meanings are assigned by the Dundee Police and Improvement Consolidation Act 1882 or by the Acts wholly or partially incorporated with this Order shall subject to the provisions of this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction Further in this Order the following expressions shall have the several meanings by this section assigned to them unless there be something in the subject or context repugnant to such construction (that is to say) :—

Interpre-
tation.

“City ” means the City and royal burgh of Dundee :

“Corporation ” means the lord provost magistrates and councillors of the City :

“Sheriff ” means the sheriff of the county of Forfar and includes his substitutes :

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“Sheriff clerk” means the principal sheriff clerk of the county of Forfar:

“The Act of 1882” means the Dundee Police and Improvement Consolidation Act 1882:

“The Order of 1907” means the Dundee Corporation Order 1907:

“The Improvements and Tramways Act of 1913” means the Dundee Corporation (Improvements and Tramways) Act 1913:

“The Boundaries Act of 1913” means the Dundee Boundaries Act 1913:

“The commencement of this Order” means the date of the passing of the Act confirming this Order.

Power to
make road
and sea wall
works.

4. Subject to the provisions of this Order the Corporation may make and maintain in the lines and situations and upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections the widening alteration and improvement sea wall or bulwark and the new road or street hereinafter described or some part or parts thereof respectively with all proper works and conveniences connected therewith (all in this Order called “road and sea wall works”).

Description
of road and
sea wall
works.

5. The road and sea wall works hereinbefore referred to and authorised by this Order are wholly within the city and royal burgh of Dundee and the Dundee combination parish and the parish of Monifieth and county of Forfar and are as follows (that is to say):—

The widening alteration and improvement (marked “Work No. 1” on the deposited plans) of part of Broughty Ferry Road (including the widening and improvement of the bridge over the railway known as the Dundee and Arbroath Joint Line at Stanner-gate) commencing in Broughty Ferry Road at a point in the centre of Broughty Ferry Road fifty-six yards west from the prolongation of the west line of strips of Craigie Road and extending therefrom on a curve in an easterly and south-easterly direction (crossing the said railway by means of a bridge) to and terminating at a point in the north line of said Broughty Ferry Road three hundred

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and six yards or thereabouts from the point of commencement: A.D. 1921.

A sea wall or bulwark (marked "Work No. 2" on the deposited plans) commencing in or upon and by a junction with the existing sea wall or bulwark at a point in the south side of Broughty Ferry Road twenty-seven yards south-east of the intersection of the centre lines of Stannergate Road and Broughty Ferry Road and extending therefrom in an easterly direction and thence on a curve in a south-easterly direction to and terminating at a point in the west side of the pier commonly called Fishers' Pier Broughty Ferry:

A road or street (marked "Work No. 3" on the deposited plans) commencing at a point in the north line of Broughty Ferry Road twenty-nine yards or thereabouts east from the intersection of the centre lines of Stannergate Road and Broughty Ferry Road and extending therefrom in an easterly direction and thence on a curve in a south-easterly direction to and terminating at a point in Fisher Street Broughty Ferry in the prolongation of the west side of the pier commonly called Fisher's Pier Broughty Ferry and twenty yards south from the north line of Fisher Street.

6. The sections hereinafter specified of the Improvements and Tramways Act of 1913 shall so far as applicable and not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the road and sea wall works by this Order authorised and to the Corporation with reference thereto as fully and effectually as if those sections had been re-enacted in this Order (that is to say):—

Application
of sections
of Dundee
Corporation
(Improve-
ments and
Tramways)
Act 1913.

Section 7 (Ownership of streets);

Section 9 (Power to cross roads &c. temporarily);

Section 10 (Corporation to form carriageways &c.);

Section 12 (Power to make minor street works connected with street works);

Section 13 (As to removal and relaying of water pipes);

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Section 14 (As to removal and relaying of electric cables and gas pipes);

Section 15 (Power to alter steps doors &c.);

Section 16 (Lands thrown into streets to be public highway).

Limits of deviation.

7. In constructing the works by this Order authorised the Corporation may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding ten feet. Provided that no deviation either lateral or vertical below high water-mark shall be made without the consent in writing of the Board of Trade.

Works below high-water mark to be subject to approval of Board of Trade.

8.—(1) Subject to the provisions of this Order any of the works authorised by this Order to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

(2) Any alteration or extension of any such works shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Lights on works during construction.

9.—(1) The Corporation shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve.

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(2) If the Corporation fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds. A.D. 1921. —

10.—(1) The Corporation shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct. Permanent lights on works.

(2) If the Corporation fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

11. If at any time the Board of Trade deems it expedient for the purposes of this Order to order a survey and examination of a work constructed by the Corporation on in over through or across tidal lands or tidal water or of the intended site of any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily. Survey of works by Board of Trade.

12. If a work constructed by the Corporation on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily. Abatement of work abandoned or decayed.

13. In case of injury to or destruction or decay of the works below high-water mark or any part thereof the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Commissioners of Northern Lighthouses and shall apply to the Commissioners for directions as to the means to be taken and the Corporation shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to Provision against danger to navigation.

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Period for completion of road and sea wall works.

14. The road and sea wall works hereinbefore described and authorised by this Order shall be completed within ten years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Power to take lands for works &c.

15. Subject to the provisions of this Order the Corporation may compulsorily or by agreement enter upon take and use all or any of the lands houses and property shown on the deposited plans and specified and described in the deposited book of reference required for or in connection with the road and sea wall works authorised by this Order.

Limitation of time for compulsory purchase of lands.

16. The powers of the Corporation for the compulsory purchase of lands houses and property required for or in connection with the road and sea wall works authorised by this Order shall cease after the expiration of six years from the commencement of this Order.

Application of certain sections of Dundee (Improvements and Tramways) Act 1913.

17. The sections hereinafter specified of the Improvements and Tramways Act of 1913 shall so far as applicable and not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the lands houses and other property authorised to be taken and appropriated by this Order and the road and sea wall works by this Order authorised and to the Corporation with reference thereto as fully and effectually as if those sections had been re-enacted in this Order (that is to say):—

Section 31 (Correction of errors in deposited plans and book of reference);

Section 34 (As to private rights of way over lands taken compulsorily);

Section 37 (Purchase of lands by agreement);

Section 38 (Power to take servitudes &c. by agreement);

Section 39 (Power to retain sell &c. lands);

Section 41 (Corporation not to be bound to execute all works &c.).

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18. Whereas in the exercise by the Corporation of the powers of this Order it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of this Order or any of them and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

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Owners may be required to sell parts only of certain properties.

The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Order and whereof a portion only is required for the purposes of this Order or each or any of them are in this section included in the term "the owner" and the said properties are in this section referred to as "the scheduled properties":

The provisions of subsections (2) to (7) both inclusive of section 33 of the Improvements and Tramways Act of 1913 are incorporated with and form part of this section:

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation (Scotland) Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845:

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

19. The Corporation shall not be entitled to take a portion only of the property of the trustees of the late David Charles Guthrie of Craigie lying south of the Dundee and Arbroath Joint Line and the powers of the Corporation for the compulsory purchase of such property shall cease on sixteenth May one thousand nine hundred and twenty-two and the provisions of the sections of this Order of which the marginal notes are "Limitation of time for compulsory purchase of lands" and "Owners may be

For protection of D. C. Guthrie's trustees.

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A.D. 1921. — required to sell parts only of certain properties" shall not apply to such property.

For protection of
Caledonian
and North
British
Railway
Companies.

20. The following provisions for the protection of the Caledonian and North British Railway Companies (hereinafter in this section called for their respective interests "the company") shall notwithstanding the provisions of this Order and unless otherwise agreed between the company and the Corporation apply and have effect (that is to say) :—

- (1) Notwithstanding anything in this Order contained the Corporation shall not take or acquire by compulsion or enter upon or interfere under the powers of this Order with any lands or property belonging to the two companies or either of them or in which they are interested :
- (2) In carrying out the widening and improvement of the bridge over the railway known as the Dundee and Arbroath Joint Line at Stannergate included in Work No. 1 the Corporation shall at their own expense rebuild the said bridge so as to permit of the construction of two additional lines of rails thereunder and give a clear head-room of fifteen feet between the rail level and the under side of the overhead girders and also so that the new abutments and wing walls of the said bridge will provide a clear space of not less than twenty-one feet six inches between the outside of the rails of the existing railway and the said new abutments and wing walls on each side :
- (3) Before commencing any works or operations under the powers conferred on them by this Order in over, under or affecting any of the railways works and property of the company the Corporation shall submit to the company plans sections working drawings and specifications thereof showing the line and level and the manner in which such works or operations are to be carried out and the mode of execution thereof for the approval of the company which approval shall not be unreasonably withheld and shall be deemed to have been given unless the company signify their disapproval within twenty-one days after submission of the said plans

sections working drawings and specifications for approval : A.D. 1921.

- (4) All the said works and operations shall be constructed carried on and completed by the Corporation in strict conformity with the plans sections working drawings and specifications so approved at the sole risk and cost of the Corporation and at the sight and to the reasonable satisfaction of the company and all such works shall be maintained repaired or renewed by the Corporation so long as they exist on the lines and levels shown on the said plans sections and working drawings and as described in the said specification so approved at their sole risk and cost and at the sight and to the satisfaction of the company ;
- (5) The Corporation shall not without the previous consent in writing of the company enter upon or alter or interfere with the railways works and property of the company further or otherwise than may be necessary for constructing and maintaining any of the works authorised by this Order to be laid in upon over or under the said railways works and property of the company of which they shall give the company twenty-eight days' notice in writing except in cases of emergency in which case notice shall be given as early as possible :
- (6) The Corporation shall pay to and reimburse the company in all reasonable costs charges and expenses which they may incur in connection with the construction of any of the works authorised by this Order or the subsequent maintenance use alteration replacing or repair thereof including (without prejudice to the said generality) any expense which the company may reasonably incur in connection with the employment of inspectors signalmen watchmen and others and for superintendence of the works hereby authorised during construction and for all extra precautions for the safety and working of their traffic or protection of their property on account of the execution maintenance use alteration replacing or repair of the said works :

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- (7) All the works and operations of the Corporation by this Order authorised including the maintenance alteration replacing or repair of such works as aforesaid shall in so far as the same affect the railways works and property of the company be carried out by the Corporation so as not to injure or alter or interfere with (except so far as may be necessary for carrying out the said works) or endanger the structure or stability of any of the said railways works and property of the company and the Corporation shall at their own expense execute all underpinning or other works which may be necessary to secure the support or safety of the said railways works and property of the company or any part thereof and should any damage or injury to or interruption or impediment of or interference with the passage or conduct of traffic on the said railways works and property of the company be caused by or be in any way owing to the said works or operations of the Corporation or the failure of or defect in any of the said works or operations the Corporation shall free of all expense to the company execute and do all such works as may be necessary to restore the damage or injury and remove such interruption impediment or interference as the case may be or the company in their option and for any of these purposes may enter upon the works or property of the Corporation and execute all such works and do all such things as may be necessary to restore such damage or injury or to remove or prevent such interruption impediment or interference and the Corporation shall on demand repay to the company all reasonable costs and expenses incurred by them in connection therewith:
- (8) The Corporation shall also make reasonable compensation to the company for all loss or damage caused by such works and operations interruption impediment or interference to or with the said railways and works and property of the company and the Corporation shall also free and relieve and indemnify the company for all damages or compensation which may be

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recovered from them at the instance of their employees passengers owners of merchandise traders or owners of property adjoining the said works or any other person or persons by reason of such interruption impediment or interference or by reason of any accident so far as such interruption impediment interference or accident shall have been occasioned by or through the acts or default of the Corporation or those for whom they are responsible :

- (9) Should it be necessary in constructing maintaining altering or repairing the works authorised by this Order to alter or remove any telegraph posts wires or other telegraphic or telephonic apparatus belonging to or maintained by the company the Corporation shall pay to and reimburse the company in all expense incurred in connection with such alteration or removal and the restoration and re-erection of other posts wires or apparatus in substitution for those so altered or removed :
- (10) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the company from maintaining and repairing and whenever in their discretion thought necessary reconstructing altering renewing deviating widening or enlarging any of the lines of railway or other works or property belonging to them without interference on the part of the Corporation and without incurring any liability to them or to any person using the works authorised by this Order for any loss injury damages or expenses which may arise from such maintenance repair reconstruction alteration renewal deviation widening or enlarging Provided that any extra expense which the company may incur in such maintenance repair renewal deviation widening enlarging alteration or reconstruction or additional signalling by reason of the existence of any of the said works by this Order authorised shall be paid by the Corporation :
- (11) In the event of the Company exercising any of the powers referred to in the immediately preceding subsection they shall do so in such

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manner as to cause as little damage and interference as practicable to and with the said works by this Order authorised and shall give (except in case of emergency in which case notice shall be given as soon as reasonably possible) fourteen days' previous notice in writing to the Corporation before commencing any such operations as may affect any of the said works authorised by this Order :

- (12) Any question or difference between the Corporation and the company arising under this section shall be determined by an arbiter to be agreed upon between the Corporation and the company or failing agreement to be nominated by the sheriff on the application of either party.

Conveyance
of Lochee
Park and
Fairmuir.

21.—(1) The Corporation as trustees of the common good may grant and execute to and in favour of the Corporation in their capacity as police commissioners a conveyance of—

- (a) The lands now laid out as public parks and known by the name of Lochee Park and Fairmuir together with the whole buildings houses boundary walls walks trees shrubs and others thereon and implements used in connection therewith in trust for the inhabitants of the City and its vicinity to be used in all time coming as public parks ; and
- (b) The fund consisting of a feu duty of ninety-three pounds one shilling and eightpence and one hundred and forty-seven pounds seven shillings and fourpence five per cent. War Loan which shall be applied in all time coming for or towards keeping up the said Lochee Park in proper order and defraying the other necessary expenses connected therewith under the conditions provisions and declarations as far as applicable and not inconsistent with the conveyance hereby authorised presently attached to the said fund.

(2) The whole costs and expenses incurred and to be incurred in and about the said conveyance shall be paid by the Corporation in their capacity as police commissioners.

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22. Any deficiency in the free annual income of the aforesaid fund for the payment of the expense of keeping up the said Lochee Park and all expenses of keeping both the said parks in proper order and for defraying the other necessary expenses connected therewith shall be met and defrayed out of the assessment for the general purposes mentioned in and such deficiency shall be deemed to be embraced under the first head of section 32 (Estimates to be made up) of the Act of 1882.

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Deficiency of income of endowment fund and upkeep of parks.

23.—(1) The provisions of Part XXV. of the Act of 1882 and this Order shall subject to the provisions of this Order apply to the said parks on the conveyance to and vesting thereof in the Corporation as fully in all respects as if those provisions were herein enacted with reference thereto.

Provisions of Act of 1882 to apply to parks.

(2) Section 24 of the Dundee Corporation Act 1897 shall be and is hereby repealed.

24. Notwithstanding anything in the Town Councils (Scotland) Act 1900 contained in case of any vacancy occurring in the Corporation from any cause (other than retirement in ordinary rotation at an annual election) between the eighteenth day of October in any year being the last day for the issue of the notice referred to in section 42 (Notice of vacancies and dates of nomination and election) of the Town Councils (Scotland) Act 1900 and the first day of October in the following year the vacancy so occurring shall subject to the provisions of this Order be filled up by a special election by the electors of the ward in respect of which such vacancy has occurred and the following provisions shall apply and have effect (that is to say) :—

Filling up vacancy in Corporation.

(1) The election shall be conducted and the costs and charges thereof defrayed in the same manner as in the case of an annual election :

(2) The town clerk as soon as may be after the occurrence of the vacancy shall subject to the approval of the Corporation fix the date of the election and the dates for the issue of all necessary notices and for lodging and withdrawing nomination papers so that the intervals between such respective dates shall be the same as in the case of an annual election and such notices and papers shall be in or as nearly as may be in the forms respectively used in the case of an annual election :

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- (3) The town clerk shall by notice to be affixed to the outside wall of the City Chambers in the City and also to be published by handbills posted up throughout the ward in respect of which the vacancy has occurred intimate (1) the cause of the vacancy (2) the ward in which the vacancy falls to be filled up (3) the date and place for lodging and withdrawing nomination papers (4) the date of the election in the event of there being a poll and (5) the polling place :
- (4) If more than one candidate is nominated for the vacancy the town clerk shall by notice to be affixed and published as aforesaid give the names of all persons so nominated and not withdrawn :
- (5) The person elected at the election shall hold the office of town councillor during the period for which the person vacating such office might lawfully have held the same.

Vacancy
within three
months of
annual
election.

25. In case of any such vacancy occurring within three months immediately preceding an annual election the Corporation may resolve that such vacancy shall not be filled up until such annual election.

Through
running of
tramway
cars.

26. The Corporation may subject to the provisions of this Order run through cars along any routes of the tramways of the Corporation for the time being or any portion thereof and such cars shall be distinguished from other cars in such manner as may be directed by the Corporation and they may demand and take for every passenger by such cars a fare or charge not exceeding the maximum fare for and in respect of the whole of such route or the whole of the portion thereof traversed by any such car which the Corporation are authorised to charge Provided that during the running of such through services the Corporation shall maintain a reasonably sufficient ordinary service of vehicles.

Power to bor-
row or raise
additional
moneys.

27.—(1) The Corporation may from time to time (in addition to any moneys they are now authorised to borrow or raise) borrow or raise sums not exceeding the amounts hereinafter mentioned for the respective purposes following (that is to say):—

- (a) In respect of the road and sea wall works by this Order authorised the sum of two hundred and six thousand pounds :

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- (b) In respect of the purchase of lands and properties and the construction of the works authorised by the Improvements and Tramways Act of 1913 and the Order of 1915 the further sum of three hundred and sixty-two thousand pounds: A.D. 1921.
—
- (c) In respect of the costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto such sum as may be necessary.

(2) All moneys borrowed under this section shall be applied only to the purposes for which they are authorised to be borrowed.

(3) If having borrowed any money under the powers of this section the Corporation pay off the same or any part thereof otherwise than by instalments or by means of a sinking fund as in this Order prescribed or out of the proceeds of the sale of lands or other moneys received by them on capital account (not being borrowed moneys) they may re-borrow the same and so on from time to time Provided that all moneys so re-borrowed shall for the purposes of repayment be deemed part of the original loan and shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such re-borrowing has been made.

28. Part V (Estimates and assessments) and Part XXXVII (Borrowing and raising of money) of the Act of 1882 section 33 (Issue of redeemable police debenture stock) of the Dundee Corporation Act 1894 and section 23 (Amendment as regards Dundee Police Debenture Stock) of the Dundee Gas Commissioners Order 1910 shall except as otherwise by this Order provided extend and apply to this Order in the same way and to the same effect as if the purposes of this Order were purposes of the said Acts Provided that the road and sea wall works by this Order authorised and the further borrowings in respect of the lands and works authorised by the Improvements and Tramways Act of 1913 and the Order of 1915 shall be deemed to be embraced under the first second third and fourth heads of section 32 (Estimates to be made up) of the Act of 1882 Provided further that section 321 (Repayment of money borrowed other than that now due by instalments of sinking fund in sixty years) of the Act of 1882 in its application to all moneys to be borrowed or raised

Certain provisions of former Acts and Order to apply.

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A.D. 1921. under the powers of this Order shall be read and have effect as if the same contained only the non-cumulative provisions therein for repayment.

Application of sections of Dundee Corporation Order 1907. 29. The sections hereinafter specified of the Order of 1907 shall so far as not varied by or inconsistent with the provisions of this Order extend and apply mutatis mutandis to the moneys authorised to be borrowed by the Corporation under this Order and to the Corporation and all other persons in respect thereof as fully and effectually as if those sections had been re-enacted in this Order with reference thereto (that is to say):—

Section 96 (Bonds by the Corporation);

Section 97 (Bonds may be transferred by indorsement);

Section 98 (Bonds to be recorded and transfers to be registered).

Crown rights. 30. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose which consent the said Commissioners and Board are hereby respectively authorised to give.

Saving for saving provisions in Act of 1882. 31. Nothing contained in this Order shall alter prejudice or affect the saving provisions contained in sections 330 (Saving rights of the Crown) 331 (Saving rights under Crown Lands Act) and 333 (Saving rights of magistrates and town council of Dundee) of the Act of 1882 but such saving provisions shall apply to this Order and for the purposes thereof.

Saving clause for Dundee Harbour. 32. Nothing contained in this Order or in any Act incorporated in whole or in part with this Order shall repeal alter diminish or affect any rights interests titles dues powers jurisdictions immunities privileges exemptions and authorities of the trustees of the harbour of Dundee

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secured under any statutes of and relating to the trustees and their harbour undertaking or under any of the Acts public local or private relating to the Corporation. A.D. 1921.

33. The costs charges and expenses of and incident to the preparing and applying for and the issue of this Order and the confirmation thereof by Parliament or otherwise in relation thereto shall be paid by the Corporation in their capacity as police commissioners Any money borrowed for paying any such costs charges and expenses shall be repaid within five years from the commencement of this Order. Costs of Order.

The SCHEDULE referred to in the foregoing Order.

PROPERTIES WHEREOF PORTIONS ONLY ARE REQUIRED
 TO BE TAKEN.

Parish.	Number on deposited Plans.	Description of Property.
Dundee Combination Parish	1 1 1 1 1	Public street or road with bridge over railway.
Dundee Combination Parish	2	Public street or road.
Dundee Combination Parish	4 4	Ground and railway.
Dundee Combination Parish	5	Public street or road.
Dundee Combination Parish	6	Ground and foreshore.
Dundee Combination Parish	7	Foreshore.
Dundee Combination Parish	9	Ground and dwelling-house.
Dundee Combination Parish	10 10 10	Ground and foreshore.
Dundee Combination Parish	11 11 11 11	Ground including links and foreshore.
Dundee Combination Parish	15	Foreshore.
Dundee Combination Parish	17	Public street or road.
Dundee Combination Parish	18	Public street or road.
Monifieth Parish - -	19	Public street or road and sea wall.

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